

Opinion of the Court

Frank H. Griffin III argued the cause for respondents. With him on the brief were *Peter A. Vogt* and *Polly M. Shaffer*.*

JUSTICE SOUTER delivered the opinion of the Court.

The question here is whether the interpretation of a so-called patent claim, the portion of the patent document that defines the scope of the patentee's rights, is a matter of law reserved entirely for the court, or subject to a Seventh Amendment guarantee that a jury will determine the meaning of any disputed term of art about which expert testimony is offered. We hold that the construction of a patent, including terms of art within its claim, is exclusively within the province of the court.

**Jeffrey Robert White*, *Pamela A. Liapakis*, and *Joseph W. Cotchett* filed a brief for the Association of Trial Lawyers of America as *amicus curiae* urging reversal.

Briefs of *amici curiae* urging affirmance were filed for the American Intellectual Property Law Association by *Don W. Martens*, *Charles L. Gholz*, *R. Carl Moy*, *Roger W. Parkhurst*, *Joseph R. Re*, *Paul A. Stewart*, and *Harold C. Wegner*; for the Federal Circuit Bar Association by *David H. T. Kane* and *Rudolph P. Hofmann*; for the Dallas-Fort Worth Intellectual Property Law Association; for Honeywell, Inc., by *Richard G. Taranto* and *David L. Shapiro*; for Intellectual Property Owners by *Rex E. Lee*, *Carter G. Phillips*, *Mark E. Haddad*, and *Constantine L. Trela*; for Matsushita Electric Corp. of America et al. by *Morton Amster* and *Joel E. Lutzker*; for United States Surgical Corp. by *John G. Kester*, *J. Alan Galbraith*, *William E. McDaniels*, *Arthur R. Miller*, *Thomas R. Bremer*, and *John C. Andres*; for *John T. Roberts*, *pro se*; and for Douglas W. Wyatt by *Mr. Wyatt*, *pro se*, *Paul M. Janicke*, and *John R. Kirk, Jr.*

Briefs of *amici curiae* were filed for Airtouch Communications, Inc., by *Allan N. Littman* and *Robert P. Taylor*; for the American Automobile Manufacturers Association by *Charles W. Bradley*, *Stanley L. Amberg*, *Phillip D. Brady*, and *Andrew D. Koblenz*; for the American Board of Trial Advocates by *Robert G. Vial*; for Exxon Corp. et al. by *Donald B. Craven*, *Gerald Goldman*, *James P. Twite*, and *James R. Lovelace*; and for Litton Systems, Inc., by *Laurence H. Tribe*, *Jonathan S. Massey*, and *Kenneth J. Chesebro*.